

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR  
EXAMINERS

STATE OF COLORADO

Case No. 2013-1671

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**STIPULATION AND FINAL AGENCY ORDER**

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO  
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF TIMOTHY EUGENE  
KELLEY, LICENSE NO. LPC 3479,

Respondent.

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IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional  
Counselor Examiners ("the Board") and Timothy Eugene Kelley ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case number 2013-1671. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Based on its review of case number 2013-1671, the Board alleges that Respondent violated §12-43-222(1)(g), (i), and (r), C.R.S. Respondent denies the Board's allegations.
5. Although Respondent denies the Board's allegations, Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated §12-43-222(1)(g), (i), and (r), C.R.S.

**PERMANENT RELINQUISHMENT**

6. Respondent hereby permanently relinquishes his LPC license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for licensure as a professional counselor in the State of Colorado.
7. Following relinquishment of his license, Respondent shall not perform any act requiring a license to practice.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado nor will Respondent perform any act constituting psychotherapy as defined under § 12-43-201 (9), C.R.S.

### **TERMS AND CONDITIONS**

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

**AGREED TO AND ACCEPTED BY:**

**RESPONDENT**

  
TIMOTHY EUGENE KELLEY  
LPC NO. 3479

**AGREED TO AND ORDERED BY:**

**BOARD OF LICENSED PROFESSIONAL  
COUNSELOR EXAMINERS**

  
JACQUILINE ARCELIN  
Program Director

Effective this 17<sup>th</sup> day of March,  
2014.